IN THE SUPREME COURT OF THE STATE OF ALASKA

Supreme Court No. S-19417
Trial Court No. 3AN-24-06508

SUMMER SAGOONICK; CH'EELIL P., a minor, by and through her guardian, ENEI P.; CECILY S. and LILA S., minors, by and through their guardians, MIRANDA W. and BOB S.; CARRIE DOCK; LINNEA LENTFER; BAY W., a minor, by and through his guardian, MILLER W.; and JAMIE T., a minor, by and through her guardian, BERTHA T.,
Plaintiffs-Appellants,

v.

STATE OF ALASKA; ALASKA GASLINE DEVELOPMENT CORPORATION; and FRANK RICHARDS, President of the Alaska Gasline Development Corporation, in his capacity,
Defendants-Appellees.

APPELLANTS' MOTION FOR PRELIMINARY INJUNCTION

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INTRODUCTION

Plaintiffs-Appellants ("Youth Plaintiffs") respectfully move this Court for a preliminary injunction (1) suspending the effect of certain "definitive agreements" (the "Agreements") between Defendant Alaska Gasline Development Corporation ("AGDC") and Glenfarne Alaska LNG, LLC, an affiliate of Glenfarne Group, LLC, ("Glenfarne"), which transfer majority ownership of the Alaska Liquified Natural Gas Project (the "Alaska LNG Project" or the "Project") and related State resources, interests, and assets from AGDC to Glenfarne; and (2) enjoining AGDC from otherwise transferring ownership, control, or any assets related to the Project during the pendency of this case.[1] This motion is necessitated by AGDC's last-minute approval of the Agreements on March 27, 2025—in a closed-door executive session on less than 24-hours' notice—without any disclosure of the Agreements' terms to Youth Plaintiffs or the public.

Preliminary injunctive relief is necessary to restore the status quo until a final judgment in this case,[2] in which Youth Plaintiffs challenge the constitutionality of the very statutes under which AGDC entered the Agreements and are alienating public trust

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[1] This motion is appropriate for this Court's review because (a) Alaska Rule of Civil Procedure 62(f) ("Power of Supreme Court Not Limited") specifically authorizes this Court "to make any order appropriate to preserve the status quo"; (b) the superior court has already dismissed the case in its entirety, rendering futile a filing in that court; and (c) Alaska Rule of Civil Procedure 62(c) ("Injunction Pending Appeal or Review") applies to an appeal taken from the superior court's ruling on an injunction, which is not the situation presented here.

[2] See, e.g., Valley Hosp. Ass'n, Inc. v. Mat-Su Coal. for Choice, 948 P.2d 963, 966 (Alaska 1997) (preliminary injunction "restored the status quo existing before the policy was enacted.").

resources from the youth beneficiaries. In the midst of Alaska's climate emergency and the mounting dangers to Alaska's youth, AS § 31.25.005(1) and (5) (the "Statutes") unconstitutionally mandate AGDC to advance and develop the Alaska LNG Project, one of the largest fossil fuel projects ever proposed globally. The Project, which crosses 800 miles of public lands and waters, will more than triple Alaska's climate pollution for decades to come, causing serious harms to Youth Plaintiffs' lives, health, safety, and cultures, and substantially limiting their access to the vital public trust resources on which their lives depend, in violation of their fundamental rights under Alaska's Constitution. Alaska Const. art. VIII, §§ 3, 15, 17 (equal access to public trust resources); art. VIII, § 4 (sustained yield of public trust resources); art. VIII and art. 1, § 7 (right to a climate system that sustains human life, liberty and dignity). If Youth Plaintiffs prevail on their claims on final judgment, the Statutes under which the Agreements were executed will be rendered void as unconstitutional because the Legislature lacks authority to mandate, and AGDC lacks authority to carry out, actions that violate the fundamental rights of its citizens.

To preserve the status quo ante litem—i.e., the situation preceding the instant dispute—this Court should preliminarily enjoin the effect of the Agreements and any other transfer of the Alaska LNG Project or related assets. Youth Plaintiffs will suffer irreparable harm without a preliminary injunction to stop the transfer, which alienates public trust resources and privatizes the unconstitutional Alaska LNG Project, enabling private parties to bring it to completion through "construction and operation," causing

profound constitutional injuries to Youth Plaintiffs.[3] In contrast, Defendants will suffer no harm from suspending a transfer until a decision on the merits. In addition, Youth Plaintiffs are likely to succeed on the merits of their appeal in this case and on each of their constitutional claims.

Youth Plaintiffs have repeatedly attempted to obtain information from Defendants regarding the status, terms, and timing of AGDC's efforts to transfer the Alaska LNG Project to a private party. Defendants refused to provide necessary information and the superior court stayed discovery, denied Youth Plaintiffs' motion for a partial lift of the stay, and subsequently dismissed on political question and prudential grounds the Youth Plaintiffs' claims that the Statutes, and the Project it mandates, are unconstitutional. Immediately upon learning of AGDC's approval and execution of the Agreements transferring the Project to private hands, Plaintiffs promptly filed this Motion to protect the status quo and their constitutional rights.

BACKGROUND

I. PROCEEDINGS BELOW

Youth Plaintiffs are eight youth and children from across Alaska who will be profoundly harmed by the Alaska LNG Project and the colossal levels of climate pollution that it will produce. On May 22, 2024, Youth Plaintiffs filed their Complaint for

[3] AGDC Press Release, Glenfarne Becomes Lead Developer for the Alaska LNG Project (Mar. 27, 2025), https://agdc.us/wp-content/uploads/2025/03/FOR-IMMEDIATE-RELEASE-20250327.pdf (stating that AGDC signed Agreements for Glenfarne to become majority owner of the Project and "lead its development to construction and operations of the entire project.").

Declaratory and Injunctive Relief facially challenging AS § 31.25.005(1) and (5) as violating their fundamental rights under Alaska's Constitution.[4] The Statutes mandate without exception that AGDC advance and develop the Alaska LNG Project. Youth Plaintiffs seek declaratory relief that the Statutes violate their rights and equitable relief enjoining Defendants from "taking any further actions to advance or develop any component of the Alaska LNG Project, including transferring, directly or indirectly, including through any AGDC subsidiary or the transfer of any interest therein, any interest in, or permit, license, authorization, or approval for the construction, development, or operation of the Alaska LNG Project."[5]

On March 20, 2025, the superior court erroneously granted Defendants' motion to dismiss, incorrectly ruling that this Court's decisions in Kanuk v. State[6] and Sagoonick v. State[7] preclude any constitutional review of the Statutes and the discrete project challenged here. Contrary to the superior court, Youth Plaintiffs' claims are materially distinct from the broader claims presented in Kanuk and Sagoonick I and follow this Court's ruling that Alaska's youth may challenge specific legislative and executive actions that worsen the climate crisis.[8] Barring judicial constitutional review of

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[4] Attachment 1 hereto.

[5] Complaint for Declaratory and Injunctive Relief, Attachment 1, pp. 77-78 (hereinafter Compl.).

[6] 335 P.3d 1088 (Alaska 2014).

[7] 503 P.3d 777 (Alaska 2022) ("Sagoonick I").

[8] Id. at 782, 798 (Alaska's Youth may challenge "discrete actions implementing State resource development and environmental policies," i.e., "specific actions by Alaska's legislative and executive branches.").

legislation and discrete projects would upend constitutional rights in Alaska.

II. THE ALASKA LNG PROJECT IS ONE OF THE LARGEST FOSSIL FUEL PROJECTS ON EARTH

The Alaska LNG Project is one of the largest fossil fuel projects ever proposed and, if completed, would be among the largest ever on Earth.[9] Defendants just transferred the Project from State hands to private parties for "its development to construction and operations of the entire project."[10] The Project will unleash colossal quantities of gas from Alaska's North Slope for combustion in Alaska and processing, liquefaction, and export to Asia.[11] The Project includes three components: (1) a 42" diameter pipeline that would split Alaska in two, crossing 800 miles of Alaska's public trust lands and waters from the North Slope to Nikiski; (2) a gas treatment plant; and (3) a liquefaction plant and marine terminal in Cook Inlet to export liquefied gas.[12]

At a time when climate pollution needs to be rapidly eliminated to avoid further and worsening harm to Alaska's youth, the Alaska LNG Project would more than triple Alaska's emissions of climate pollution for each year of its intended decades long

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[9] Affidavit of Michael Lazarus in Support of Plaintiffs' Motion for Preliminary Injunction ("Lazarus Aff.") ¶ 6.

[10] AGDC Press Release, Glenfarne Becomes Lead Developer for the Alaska LNG Project (Mar. 27, 2025), https://agdc.us/wp-content/uploads/2025/03/FOR-IMMEDIATE-RELEASE-20250327.pdf.

[11] Lazarus Aff. ¶ 8.

[12] AS § 31.25.390(1)(A), (B), (E), (F); AGDC President's Report, 9 (June 13, 2024), https://agdc.us/wp-content/uploads/2024/06/AGDC-Board-of-Directors-Meeting-Presidents-Report-June-13-2024.pdf.

duration.[13] The Project will result in the extraction of up to 3.9 billion cubic feet per day of gas for at least thirty years.[14] The vast majority of the gas extracted and processed in Alaska will be exported to Asia.[15] The Project will be one of the world's single largest sources of climate pollution, leading to at least 2.3 to 3.9 billion metric tons (Gt) of carbon dioxide equivalent (CO2e) emissions from combustion and leakage over its lifetime.[16] The gas is not necessary for Alaska's energy demand and the Project will lock in dependence on fossil fuels for decades and slow the transition to clean, renewable energy not just in Alaska but across LNG-importing countries.[17]

The Project was under the sole ownership and control of AGDC until Thursday, March 27, 2025, when the state agency entered the Agreements to transfer majority ownership to Glenfarne, thereby alienating from trustee control public trust resources in which Youth Plaintiffs hold rights as beneficiaries.

III. AGDC EXECUTED THE AGREEMENTS IN SECRET, WITH VIRTUALLY NO NOTICE, AND WITHOUT DISCLOSING THE TERMS

Pursuant to the unconstitutional directive in the Statutes, AGDC has been advancing and developing the Alaska LNG Project, and has publicly represented that it has secured all necessary permits for the Project and that it can "move into construction

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[13] Lazarus Aff. ¶¶ 6, 8, 29.

[14] Lazarus Aff. ¶ 18; AGDC President's Report, 36 (June 13, 2024).

[15] Lazarus Aff. ¶ 16.

[16] Lazarus Aff. ¶ 6.

[17] Lazarus Aff. ¶¶ 21, 26; Affidavit of Mark Jacobson in Support of Plaintiffs' Motion for Preliminary Injunction ("Jacobson Aff.") ¶ 4.

quickly."[18] AGDC created 8 Star Alaska, LLC ("8 Star") to "hold and manage all Alaska LNG project assets."[19] Transferring the Project from AGDC's control through 8 Star to a private party is Defendants' most critical step to beginning "construction and operations of the entire" Alaska LNG Project.[20] By transferring ownership and control of AGDC/8 Stars' Project permits to private parties, the Agreement alienates immense swaths of state lands, waters, and other public trust resources in which Youth Plaintiffs hold rights as protected beneficiaries,[21] for a purpose that will cause unprecedented substantial impairment of all trust resources of the state.[22]

On May 22, 2024, Youth Plaintiffs filed their Complaint, which includes a request to enjoin AGDC from transferring any interest or asset of the Alaska LNG Project to private parties.[23] On June 12, 2024, Youth Plaintiffs served initial interrogatories on

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[18] AGDC President's Report, 18 (June 13, 2024), https://agdc.us/wp-content/uploads/2024/06/AGDC-Board-of-Directors-Meeting-Presidents-Report-June-13-2024.pdf

[19] AGDC Press Release, Glenfarne Becomes Lead Developer for the Alaska LNG Project (Mar 27, 2025), https://agdc.us/wp-content/uploads/2025/03/FOR-IMMEDIATE-RELEASE-20250327.pdf.

[20] Id.

[21] CWC Fisheries, Inc. v. Bunker, 755 P.2d 1115, 1118 (Alaska 1988) (quoting Illinois Cent. R.R. Co. v. Illinois, 146 U.S. 387, 453 (1892)) ("The control of the State for purposes of the trust can never be lost, except as to such [resources] as are used in promoting the interests of the public therein, or can be disposed of without any substantial impairment of the public interest in the [resources] remaining."); Brooks v. Wright, 971 P.2d 1025, 1032 (Alaska 1999) ("Article VIII requires that natural resources be managed for the benefit of all people," including "future generations").

[22] See Argument Section I.A (substantial impairment to public trust resources from the Project).

[23] Attachment 1.

AGDC seeking information on the status, timing, and terms of AGDC's efforts to transition ownership and control of the Project to private parties in order to assess the need for preliminary injunctive relief.[24] Defendants moved to stay discovery pending their motion to dismiss.[25] The parties attempted to resolve the discovery dispute without court intervention but Defendants refused to provide the requested information or to provide Youth Plaintiffs with advance notice of any transfer.[26] The superior court granted the stay of discovery over Youth Plaintiffs' opposition.[27]

Upon AGDC's announcement in January that AGDC had entered an exclusive framework agreement with a private party to transfer ownership and control of the Project, Youth Plaintiffs requested information from Defendants regarding the status, terms, and timing of this proposed transaction, but Defendants denied their requests.[28] Youth Plaintiffs then moved in the superior court for a partial lift of the stay to seek limited discovery to determine whether preliminary relief was warranted.[29] The superior court denied the motion to lift the stay and dismissed Youth Plaintiffs' claims on March

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[24] Affidavit of Andrew Welle in Support of Plaintiffs' Motion for Preliminary Injunction ("Welle Aff.") ¶ 4.

[25] Welle Aff. ¶ 5.

[26] Welle Aff. ¶ 6.

[27] Welle Aff. ¶ 7; Order Granting Defendants' Motion to Stay Discovery, Attachment 3 hereto.

[28] Welle Aff. ¶ 10.

[29] Welle Aff. ¶ 10.

10, 2025.[30]

On March 26, 2025, AGDC posted for the first time on its website that a "special" Board meeting would occur less than 24 hours later.[31] During the meeting, the Board went into a closed-door executive session where they considered whether to approve the Agreements to transfer majority ownership in the Project from AGDC to Glenfarne.[32] After the executive session, the Board voted to approve the Agreements and Board members stated that the Agreements and their terms will not be shared with the public.[33] Only after approving the Agreements did the Board open the meeting to public comment.[34] After the meeting, AGDC published a press release announcing that AGDC and Glenfarne had signed the Agreements, making Glenfarne the "lead developer" and "majority owner" of the Alaska LNG Project.[35]

Prior to the announcement of the March 27 board meeting, AGDC never stated publicly when definitive agreements would be ready for the Board's consideration, what their terms might be, or when the parties might sign them.[36] Despite Defendants'

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[30] Welle Aff. ¶ 11; Order Regarding Case Motion #7 (denying Plaintiffs' Motion for Partial Lift of Stay of Discovery), Attachment 4 hereto.

[31] AGDC, Board Meeting Schedule and Materials, https://agdc.us/about-us/board-meeting-schedule-materials/; Welle Aff. ¶ 12.

[32] Welle Aff. ¶ 13.

[33] Welle Aff. ¶ 15.

[34] Welle Aff. ¶ 15.

[35] AGDC Press Release, Glenfarne Becomes Lead Developer for the Alaska LNG Project (Mar. 27, 2025), https://agdc.us/wp-content/uploads/2025/03/FOR-IMMEDIATE-RELEASE-20250327.pdf; Welle Aff. ¶ 16.

[36] Welle Aff. ¶¶ 8, 9, 14.

knowledge of Youth Plaintiffs' interest in and earnest requests for details regarding the transaction, AGDC approved and proceeded to swiftly finalize the Agreements with no advance notice to Plaintiffs.[37] Indeed, the March 27, 2025 AGDC President's Report presented to the Board immediately prior to its approval of the Agreements acknowledges AGDC's knowledge that "Plaintiffs have indicated their intent to appeal their case."[38]

Under the circumstances, this Court should enjoin and suspend the Agreements and restore the status quo existing before they were entered until a final judgment regarding the constitutionality of AS § 31.25.005(1) and (5).

LEGAL STANDARD

A party may secure a preliminary injunction by satisfying either of two tests, depending on the "nature of the threatened injury."[39] First, if the plaintiff "faces the danger of 'irreparable harm' and if the opposing party is adequately protected," then the court applies "a 'balance of hardships' approach in which the plaintiffs must raise 'serious' and substantial questions going to the merits of the case[.]"[40] This requires only that "the issues raised cannot be frivolous or obviously without merit."[41] Alternatively, if the "plaintiff's threatened harm is less than irreparable or if the opposing party cannot be

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[37] Welle Aff. ¶¶ 6, 10, 14-16.

[38] AGDC President's Report, 15 (Mar. 27, 2025), https://agdc.us/wp-content/uploads/2025/03/AGDC_Board-of-Directors-Meeting_Presidents-Report_March_27_2025.pdf.

[39] State, Div. of Elections v. Metcalfe, 110 P.3d 976, 978 (Alaska 2005).

[40] Id. at 978-79.

[41] Id.

adequately protected," then the plaintiff can secure preliminary relief upon "a clear showing of probable success on the merits."[42]

ARGUMENT

I. PRELIMINARY RELIEF IS WARRANTED UNDER THE BALANCE OF HARDSHIPS TEST

A. Youth Plaintiffs Are Irreparably Harmed by the Transfer of Public Resources Out of State Hands to a Private Party

Absent preliminary injunctive relief, Youth Plaintiffs will be irreparably harmed because the Agreements irretrievably commit and alienate public trust resources in which Youth Plaintiffs have rights as beneficiaries,[43] authorizing private parties to complete the Project and bring about irreversible harms to Youth Plaintiffs' health, safety, and access to trust resources.[44] Preliminary relief is appropriate to prevent such "irreparable loss of rights before judgment."[45]

By transferring ownership and control of all Project assets and permits to private parties, authorizing and enabling them to utilize such assets and permits, the Agreements alienate vast swaths of Alaska's lands, waters, fish, wildlife, and other public trust resources, including tearing through the 800 miles of state lands and numerous state

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[42] Id. at 978.

[43] Brooks, 971 P.2d at 1032 (Alaska 1999) ("Article VIII requires that natural resources be managed for the benefit of all people," including "future generations").

[44] See Argument Section I.A (substantial impairment to public trust resources and profound harms to Youth Plaintiffs from the Project).

[45] Martin v. Coastal Villages Region Fund, 156 P.3d 1121, 1126 n.4 (Alaska 2007).

waterways the pipeline will cross.[46] Transferring majority ownership of the Alaska LNG Project and all of its assets and permits to a private party "represents the point at which" AGDC makes "an irretrievable commitment" of public trust resources in which Youth Plaintiffs have rights as beneficiaries and therefore "meets their burden of showing irreparable injury."[47] Statewide resources of such immense proportions, which are a "subject of concern to the whole people of the state," cannot be "allowed to pass into the control of any private corporation" because "such property is held by the state, by virtue of its sovereignty, in trust for the public."[48] Suspending the Agreements preserves the status quo and prevents the irretrievable commitment of resources towards the Project by keeping all aspects of the Project, including permits and public trust resources, in State hands, preventing their alienation from the public sphere.

Further, Plaintiffs face irreparable harm because, by transferring all Project permits and assets, the Agreements enable and authorize private parties to complete

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[46] Under the public trust doctrine, as constitutionalized in article VIII, Alaska's government holds certain natural resources in trust for public use and "owes a fiduciary duty to manage such resources for the common good of the public as beneficiary." Baxley v. State, 958 P.2d 422, 434 (Alaska 1998) (quoting McDowell v. State, 785 P.2d 1, 16 n.9 (Alaska 1989)); CWC Fisheries, 755 P.2d at 1118 (quoting Illinois Cent. R.R. Co., 146 U.S. at 453) ("The control of the State for purposes of the trust can never be lost, except as to such [resources] as are used in promoting the interests of the public therein, or can be disposed of without any substantial impairment of the public interest in the [resources] remaining.").

[47] See, e.g., S. Utah Wilderness All. v. Allred, No. CIVA 08-2187 RMU, 2009 WL 765882, at *2 (D.D.C. Jan. 17, 2009) (unpublished) ("[B]ecause the lease sale represents the point at which the [government] makes an irreversible and irretrievable commitment of resources, the plaintiffs have met their burden of showing irreparable injury.").

[48] Illinois Cent. R.R. Co. v. Illinois, 146 U.S. 387, 455-56 (1892).

"construction and operations of the entire project," bringing about irreversible harms to Youth Plaintiffs' health, safety, and access to public trust resources in violation of their constitutional rights.[49] "It is well established that the deprivation of constitutional rights 'unquestionably constitutes irreparable injury.'"[50] Indeed, Alaska's courts "have a duty to ensure compliance with constitutional principles, and [courts] have a duty to redress constitutional rights violations."[51] Suspending and preventing a transfer of the Project into private hands for development is critical to protecting Plaintiffs' constitutional rights as beneficiaries to state public trust resources and to their lives, health, safety, and access to such resources as necessary to sustain their lives and cultures. A transfer of ownership and control of the Project will allow private parties to make investments and take actions to "lead development to construction and operation of the entire project."[52] As then-First Circuit Judge Breyer ruled, every action in such a process "represents a link in a chain"

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[49] AGDC Press Release, Glenfarne Becomes Lead Developer for the Alaska LNG Project (Mar. 27, 2025), https://agdc.us/wp-content/uploads/2025/03/FOR-IMMEDIATE-RELEASE-20250327.pdf; see Argument Section I.A (Detailing profound harms to Youth Plaintiffs from the Project); Argument Section II.B (Merits of Youth Plaintiffs' Claims).

[50] Melendres v. Arpaio, 695 F.3d 990, 1002 (9th Cir. 2012) (quoting Elrod v. Burns, 427 U.S. 347, 373 (1976)); Warsoldier v. Woodford, 418 F.3d 989, 1001-02 (9th Cir. 2005) ("When an alleged deprivation of a constitutional right is involved, most courts hold that no further showing of irreparable injury is necessary.") (citation omitted); Associated Gen. Contractors of Cal., Inc. v. Coal. for Econ. Equity, 950 F.2d 1401, 1412 (9th Cir. 1991) ("We have stated that an alleged constitutional infringement will often alone constitute irreparable harm.") (quotations and citations omitted).

[51] Sagoonick I, 503 P.3d at 796.

[52] AGDC Press Release, Glenfarne Becomes Lead Developer for the Alaska LNG Project (Mar. 27, 2025), https://agdc.us/wp-content/uploads/2025/03/FOR-IMMEDIATE-RELEASE-20250327.pdf.

that "will become progressively harder to undo the longer it continues . . . and it is the presence of this type of harm that courts have said can merit an injunction in an appropriate case."[53]

Transferring the Project to private parties to "lead its development to construction and operations of the entire project"[54] irreparably harms Plaintiffs because the colossal levels of resulting climate pollution will increase temperatures and dangerous heatwaves, wildfires, wildfire smoke, extreme storms, permafrost thaw, loss of sea ice, coastal erosion, flooding, and other climate changes that threaten Youth Plaintiffs' health and safety.[55] As the United States Supreme Court has recognized, such long lasting and permanent environmental injury "by its nature" is "irreparable."[56] Every ton of CO2 emissions that is emitted from the Alaska LNG Project will add to global warming and every increment of warming results in rapidly escalating hazards that endanger the health

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[53] Com. of Mass. v. Watt, 716 F.2d 946, 952-53 (1st Cir. 1983), abrogated on other grounds by Marsh v. Oregon Nat. Res. Council, 490 U.S. 360 (1989); see also See Sierra Club v. Marsh, 872 F.2d 497, 504 (1st Cir. 1989) ("difficulty of stopping" project momentum, once started, is a "perfectly proper factor" for court to consider on motion for preliminary injunction); Steubing v. Brinegar, 511 F.2d 489, 497 (2d Cir. 1975) ("Without preliminary injunctive relief" the project "might well reach the stage" where "it would be impossible to turn back").

[54] AGDC Press Release, Glenfarne Becomes Lead Developer for the Alaska LNG Project (Mar. 27, 2025), https://agdc.us/wp-content/uploads/2025/03/FOR-IMMEDIATE-RELEASE-20250327.pdf.

[55] See generally Affidavit of Micah Hahn in Support of Plaintiffs' Motion for Preliminary Injunction ("Hahn Aff."); id. ¶¶ 1, 40; see generally Affidavit of Henry Huntington in Support of Plaintiffs' Motion for Preliminary Injunction ("Huntington Aff."); id. ¶¶ 1, 2, 40; Lazarus Aff. ¶ 1.

[56] All. for the Wild Rockies v. Cottrell, 632 F.3d 1127, 1135 (9th Cir. 2011).

and safety of Youth Plaintiffs.[57] The Project will more than triple Alaska's climate pollutions for decades, causing escalating harms and threats to Plaintiffs.[58] For example, because of the Project's significant emissions:

- Temperatures and dangerous heatwaves will increase, threatening Youth Plaintiffs, who, as youth and children, are uniquely vulnerable to the dangers of excess heat, like Ch'eelil who has already experienced heat sickness from Alaska's climate-driven warming.[59]
- The thawing of Alaska's permafrost, which underlies 85% of the State, will worsen, threatening homes and critical infrastructure.[60] Summer and Jamie's homes will sink further into the tundra, threatening their habitability and exposing them to more climate-driven flooding.[61]
- Climate driven flooding will increase, exposing Youth Plaintiffs to danger, like Jamie, who has already experienced climate-driven flooding events that have

[57] Lazarus Aff. ¶ 5; Affidavit of Steven Running in Support of Plaintiffs' Motion for Preliminary Injunction ("Running Aff.") ¶¶ 1, 18, 27.

[58] Lazarus Aff. ¶¶ 9, 10; Huntington Aff. ¶¶ 1, 2, 40; See generally Hahn Aff.; id. ¶¶ 1, 40.

[59] Huntington Aff. ¶¶ 2, 6-10, 40; Hahn Aff. ¶¶ 14-19; 40; Affidavit of Ch'eelil P. in Support of Plaintiffs' Motion for Preliminary Injunction ("Ch'eelil Aff.") ¶ 12.

[60] Huntington Aff. ¶¶ 1, 26-28, 40.

[61] Affidavit of Jamie T. in Support of Plaintiffs' Motion for Preliminary Injunction ("Jamie Aff.") ¶ 8; Affidavit of Summer Sagoonick in Support of Plaintiffs' Motion for Preliminary Injunction ("Summer Aff.") ¶ 14; Huntington Aff. ¶¶ 1, 26, 40; Hahn Aff. ¶¶ 1, 7, 12, 20-26, 40.

inundated her home, and Ch'eelil, whose family cabin was damaged by flooding.[62]

- Erosion and land loss from thawing permafrost, loss of sea ice, and climate-driven flooding will worsen, endangering the continuing existence of entire coastal communities, like Summer's communities in Unalakleet and Shaktoolik.[63]
- Climate driven flooding and permafrost thaw will further increase riverbank erosion throughout Alaska, threatening homes and infrastructure, including from the banks of the Johnson River, causing it to flow even further underneath Jamie's home and potentially rendering it uninhabitable.[64]
- Climate driven wildfires will increase in intensity, frequency, and range, endangering their homes, like Ch'eelil, whose family has already been forced to evacuate their home because of increasing wildfires, and exposing Youth Plaintiffs to increasingly dangerous air quality.[65]

Transferring the Project for private parties to complete will further irreparably harm Plaintiffs because the resulting climate pollution will substantially limit Plaintiffs' access to trust resources that they rely on to sustain their health and cultures.[66] The Project's significant climate pollution will cause escalating ecosystem transformation and

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[62] Jamie Aff. ¶ 10; Ch'eelil Aff. ¶ 9; Huntington Aff. ¶¶ 1, 2, 19, 40; Hahn Aff. ¶¶ 1, 7, 12, 13, 27, 28, 30, 40.

[63] Huntington Aff. ¶ 1, 2, 28, 36; 40; Summer Aff. ¶¶ 15-17.

[64] Huntington Aff. ¶¶ 1, 2, 19, 28, 34, 40; Jamie Aff. ¶¶ 5, 10.

[65] Huntington Aff. ¶¶ 1, 2, 25, 40; Ch'eelil Aff. ¶ 10; Summer Aff. ¶ 21.

[66] See generally Huntington Aff.; id. ¶ 1, 2, 40.

subsistence species declines, crashes, and extinctions.[67] As a result:

- Plaintiffs will face more die-offs, sick and infected subsistence species, populations declines, crashes, and closures than they are already facing, like the climate-driven crash and closure of the Yukon River Chinook fishery that is harming Ch'eelil and the salmon die-offs and declines Jamie and Summer are also experiencing.[68]
- Plaintiffs will see escalating ecosystem transformation, further altering subsistence species range and migration patterns and limiting access to game species for youth like Summer, Jamie, and Ch'eelil.[69]

Transferring the Alaska LNG Project to private parties to bring to construction and operation will also limit Youth Plaintiffs' access to subsistence resources by making access more difficult and dangerous.[70] Because of the substantial climate pollution from the Project:

- Youth Plaintiffs will see even less snow cover in winter; even later freezing and earlier melting of rivers, lakes, and sea ice; thinner and less predictable ice stability; more permafrost thaw; more flooding; increasingly severe weather; and other worsening climate changes that prevent and make travel and access to

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[67] Huntington Aff. ¶¶ 1, 40; See generally Lazarus Aff.

[68] Ch'eelil Aff. ¶ 7; Summer Aff. ¶ 6; Jamie Aff. ¶ 17; Huntington Aff. ¶¶ 1, 2, 14, 40.

[69] Ch'eelil Aff. ¶ 8; Summer Aff. ¶¶ 6, 7; Jamie Aff. ¶ 14; See generally Huntington Aff.; Id. ¶¶ 14, 40; Hahn Aff. ¶ 40.

[70] See generally Huntington Aff.; Hahn Aff.

subsistence resources increasingly difficult and hazardous for them.[71]

- Youth Plaintiffs like Jamie and Summer will be prevented more and more often from hunting and fishing as the ice and permafrost that once provided stability for access and travel diminishes.[72]
- Plaintiffs will see warmer winters and changing precipitation patterns, making the timing of the game seasons increasingly unpredictable, changing migration patterns, and making it increasingly more difficult for Ch'eelil, Summer, and Jamie to find and harvest game in traditional areas.[73]

Transferring the Project to private parties for its construction and operation also threatens Youth Plaintiffs' ability to learn, transmit, and practice their cultural traditions. The Project's substantial climate pollution will cause significant disruption to the lands, waters, fish, and wildlife that Alaska Native communities, such as those of Summer, Jamie, and Ch'eelil, have relied on since time immemorial, and which significantly shape their identities and cultures.[74] Already, traditional knowledge and practices are suffering and struggling to adapt to existing changes, which the Alaska LNG Project will substantially worsen, putting them at increasing risk of being lost.[75]

Youth Plaintiffs also face irreparable harm to their mental health from a transfer of

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[71] Huntington Aff. ¶¶ 1, 2, 12, 30, 40; Hahn Aff. ¶¶ 1, 22, 36, 40; Summer Aff. ¶ 11; Jamie Aff. ¶ 18.

[72] Huntington Aff. ¶¶ 1, 2, 12, 40; Summer Aff. ¶¶ 10, 11; Jamie Aff. ¶¶ 18, 20.

[73] Huntington Aff. ¶¶ 1, 2, 35, 40; Summer Aff. ¶¶ 6, 7; Jamie Aff. ¶ 14; Ch'eelil Aff. ¶ 8.

[74] Hahn Aff. ¶ 10; Jamie Aff. ¶¶ 3, 14; Summer Aff. ¶¶ 3, 24; Ch'eelil Aff. ¶ 3.

[75] Jamie Aff. ¶ 14; Summer Aff. ¶ 24; Huntington Aff. ¶¶ 1, 2, 40.

the Project. Ch'eelil feels "betrayed" that her government is sacrificing her future and has transferred state resources to a private party to cause catastrophic harm to her life, culture, home, and resources she depends on.[76] Summer experiences "fear, dread, and hopelessness" and fears for her health and safety, her ability to access subsistence resources, and her ability to learn, practice and transmit her culture because of the worsening effects of continuing climate pollution that will result from the Project.[77] Youth Plaintiffs' mental health and physical health are interrelated and climate pollution from the LNG Project will harm both.[78] These harms are irreparable.

B. Any Harm to Defendants in Temporarily Enjoining a Transfer Is Slight in Comparison to the Harm Youth Plaintiffs Will Suffer Absent an Injunction

Defendants would suffer little if any harm from the requested preliminary injunction pending a final judgment on the merits. The requested preliminary injunction would preserve the status quo and AGDC's control of the Alaska LNG Project during the duration of the case, which, if necessary, can be decided on an expedited basis, as Plaintiffs requested in their Complaint.[79] It cannot be said that keeping a Project involving public trust resources in state hands is irreparable harm to Defendants who must maintain public trust resources "for the benefit of all people," including "future

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[76] Ch'eelil Aff. ¶ 15.

[77] Summer Aff. ¶ 23.

[78] See generally Hahn Aff.

[79] Compl. ¶ 8.

generations."[80] Preserving the status quo protects Defendants against any financial harm claims Glenfarne might raise if, in the absence of a preliminary injunction, it invests resources in carrying out the Project, and Youth Plaintiffs secure a judgment declaring the Statutes pursuant to which AGDC entered the Agreements unconstitutional.[81]

C. Youth Plaintiffs Raise Serious and Substantial Questions Going to the Merits of the Case

Because the balance of hardships favors them, Youth Plaintiffs need only raise "serious and substantial questions going to the merits" which only requires that "the issues raised cannot be frivolous or obviously without merit."[82] As demonstrated in Section II below, Youth Plaintiffs are likely to succeed on the merits of their claims, which is more than enough to satisfy the "serious and substantial questions" standard.

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[80] Brooks, 971 P.2d at 1032 ("Article VIII requires that natural resources be managed for the benefit of all people," including "future generations").

[81] In analyzing the balance of the hardships, this Court has in some cases considered the public interest in granting our denying a requested preliminary injunction. State v. Galvin, 491 P.3d 325, 339 (Alaska 2021). In this case, allowing the Agreements to take effect prior to final judgment on the constitutionality of the Statutes is counter to the public interest because the Agreements alienate public trust resources dedicated to all Alaskans and the substantial climate pollution from the Project will cause serious harm to public health and safety. Additionally, the lack of transparency and participation afforded to the public regarding the Agreements further counsels in favor of enjoining their effect pending a determination of their constitutionality.

[82] Metcalfe, 110 P.3d at 978.

[83] Youth Plaintiffs are willing to proceed with their appeal, and in the event of a remand, in the superior court on an expedited briefing schedule if the Court determines that is needed to timely resolve this motion.

II. YOUTH PLAINTIFFS ARE LIKELY TO SUCCEED ON THE MERITS

A. Youth Plaintiffs Are Likely to Succeed in This Appeal[83]

Youth Plaintiffs are likely to succeed on appeal. In prior cases, this Court told youth suffering harm from Alaska's climate emergency, including several of the same Youth Plaintiffs here, that they "may challenge discrete actions implementing State resource development and environmental policies[,]" under Alaska's Constitution, i.e., "specific actions by Alaska's legislative and executive branches."[84] That is precisely what Youth Plaintiffs have done here by challenging AS § 321.25.005(1) and (5), which specifically mandate the Alaska LNG Project. In dismissing Youth Plaintiffs' constitutional claims, the superior court ignored this Court's precedent and violated its duties under the separation of powers "to ensure compliance with constitutional principles" and "to redress constitutional rights violations."[85] Based on this Court's clear precedent in prior cases brought by youth to protect their fundamental rights, Plaintiffs are likely to prevail on this appeal and after trial, win a declaration and injunction in their favor. Therefore, the Agreements should be preliminarily enjoined until a final judgment.

Indeed, when a party challenges a natural resource management statute or regulation as violating the substantive rights and limitations provided under article VIII of Alaska's Constitution, as here, Alaska's courts are "compelled to strike down any

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[84] Sagoonick I, 503 P.3d at 798; Id. at 782 (affirming that plaintiffs may challenge "specific actions by Alaska's legislative and executive branches"). Youth Plaintiffs Summer, Lila, and Cecily in the present case were each plaintiffs in Sagoonick I. Cecily and Lila were also plaintiffs in Kanuk.

[85] Sagoonick I, 503 P.3d at 796

statutes or regulations that violate" them.[86]

The superior court's erroneous conclusion that Kanuk and Sagoonick I dictate the dismissal of this case on political question grounds[87] ignores critical differences between this case and Kanuk and Sagoonick I. Those cases presented broader challenges to the State's overall approach to climate pollution and fossil fuels and this Court's rulings in those cases were limited to the requests for orders requiring the State to comprehensively eliminate Alaska's climate pollution by a date certain.[88] This case narrowly and facially challenges specific Statutes that mandate a specific Project and Youth Plaintiffs request a focused declaratory judgment that the Statutes are unconstitutional and their implementation should be enjoined.[89]

Further, the superior court conducted no analysis under the Baker v. Carr factors

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[86] Owsichek v. State, Guide Licensing & Control Bd., 763 P.2d 488, 496 (Alaska 1988).

[87] Order Granting Defendants' Motion to Dismiss, Attachment 2.

[88] Kanuk, 355 P.3d at 1097 (describing requests to require State to comprehensively eliminate emissions of climate pollution); id. at 1091 (finding that "claims asking the court to set specific standards for carbon dioxide emissions and to order the State to implement reductions in accordance with those standards" implicated political questions but other claims for relief did not); Sagoonick I, 503 P.3d at 797 ("Plaintiffs primarily seek an injunction mandating that the State develop a 'climate recovery plan' that is 'consistent with global emissions reduction rates necessary to stabilize the climate system.'"); id. at 796-99 (finding requests for orders requiring the State to comprehensively eliminate emissions of climate pollution presented political question but other requests for relief did not). Another distinction between this case and Sagoonick I, is that the Court determined the challenge in Sagoonick I was an "as-applied" constitutional challenge, whereas this case asserts a facial challenge to the constitutionality of AS § 31.25.005 (1) and (5).

[89] Compl. at 77-78.

Alaska's court employ to identify political questions.[90] A proper analysis demonstrates that Youth Plaintiffs' constitutional claims implicate none.[91] "In general, the Judiciary has a responsibility to decide cases properly before it, even those it would gladly avoid," and the political question doctrine is a "narrow exception to that rule."[92] Under Baker, "there should be no dismissal for non-justiciability" unless one of the factors is "inextricable from the case at bar."[93]

The first Baker factor requires an exclusive "textually demonstrable constitutional commitment" to another branch of the "particular question posed[.]"[94] Here, resolution of Youth Plaintiffs' claims is exclusively committed to the judiciary because "under Alaska's constitutional structure of government, 'the judicial branch . . . has the constitutionally mandated duty to ensure compliance with the provisions of the Alaska

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[90] 369 U.S. 186 (1962); Kanuk, 335 P.3d at 1096-97 (To determine the presence of nonjusticiable political question Alaska's courts "apply[] the test announced by the United States Supreme Court in Baker v. Carr.").

[91] In briefing below, Defendants only raised Baker factors 1-4.

[92] Zivotofsky v. Clinton, 566 U.S. 189, 194-95 (2012).

[93] Baker, 369 U.S. at 217 (emphasis added). If this Court finds Youth Plaintiffs' allegations deficient in any respect, including as necessary to state justiciable claims for relief, Youth Plaintiffs respectfully request leave to amend. Alaska Com. Fisherman's Mem'l in Juneau v. City & Borough of Juneau, 357 P.3d 1172, 1178 (Alaska 2015) ("Alaska Civil Rule 15(a) requires that leave to amend 'be freely given when justice so requires,' and Alaska has 'adopted a liberal policy for amending pleadings' under the rule.").

[94] Baker, 369 U.S. at 211, 217.

Constitution.'"[95] The separation of powers, which the political question doctrine is intended to protect, is disrupted when courts do not fulfill their role to serve as a check on the legislature and review laws alleged to be unconstitutional.[96] Under the second Baker factor, "judicially discoverable and manageable standards" are well established and readily available "for resolving" Youth Plaintiffs' constitutional claims,[97] as more fully demonstrated in section II.B, below. As this Court stated in Kanuk, "courts have the traditional tools, from the constitution or the common law," to resolve "cases involving the public trust doctrine[.]"[98] The third Baker factor asks whether there is an "impossibility of deciding [the case] without an initial policy determination of a kind clearly for nonjudicial discretion[.]"[99] This factor is only applicable when a court "cannot resolve a dispute in the absence of a yet-unmade policy determination[.]"[100] In this case, the Court can apply constitutional provisions and precedent to Youth Plaintiffs' claims to determine whether the challenged statutes are constitutionally compliant or violative. The fourth Baker factor asks whether there is "an impossibility" of resolving the case

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[95] Kanuk, 335 P.3d at 1099 (quoting State, Dep't of Health & Soc. Servs. v. Planned Parenthood of Alaska, Inc., 28 P.3d 904, 913 (Alaska 2001)); id. at 1099 n.58 (addressing first Baker factor, stating "the Alaska Constitution does not commit the task of constitutional interpretation to another branch").

[96] Baker, 369 U.S. at 210 ("The nonjusticiability of a political question is primarily a function of the separation of powers.").

[97] Baker, 369 U.S. at 217.

[98] Kanuk, 335 P.3d at 1100 n.61.

[99] Baker, 369 U.S. at 217.

[100] Zivotofsky, 566 U.S. at 204 (Sotomayor, J., concurring).

"without expressing lack of the respect due coordinate branches of government[.]"[101] If this factor applied here, and assessing the constitutionality of challenged statutes were precluded under the fourth Baker factor, Alaska's courts could never exercise their "constitutionally mandated duty to ensure compliance with the provisions of the Alaska constitution."[102]

For these reasons, and those Youth Plaintiffs will more fully set forth in their brief on appeal, Youth Plaintiffs are likely to succeed in this appeal.

B. Youth Plaintiffs Are Likely to Succeed on the Merits of Their Constitutional Claims

1. AS § 31.25.005(1) and (5) Violates Youth Plaintiffs' Rights to Equal Access under Article VIII, Sections 3, 15, and 17

Count 1 of Youth Plaintiffs' Complaint alleges that AS § 3.25.005(1) and (5) violates Youth Plaintiffs' rights under article VIII, sections 3, 15, and 17 because the Alaska LNG Project mandated by these provisions will substantially limit Youth Plaintiffs' access to public trust resources relative to present and past generations of adults.[103]

Article VIII constitutionalizes the public trust doctrine under which Alaska's government holds natural resources in trust for public use and owes fiduciary duties to

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[101] Baker, 369 U.S. at 217.

[102] Kanuk, 335 P.3d at 1099 (quoting Planned Parenthood of Alaska, 28 P.3d at 913); id. at 1099 n.58 (addressing first Baker factor, stating "the Alaska Constitution does not commit the task of constitutional interpretation to another branch").

[103] Compl. ¶¶ 212-17.

manage such resources for the common good of the public as beneficiary.[104] Public trust resources explicitly protected under article VIII include "fish, wildlife, and waters" as well as "forests, … grass lands, and all other replenishable resources."[105] Alaska's Courts are "compelled to strike down any statutes or regulations that violate [the] principle[s]" of the public trust doctrine.[106]

Specifically, "[s]ections 3, 15, and 17 of article VIII are the equal access clauses of the Alaska Constitution."[107] Article VIII's equal access provisions are "intended to guarantee broad public access to natural resources"[108] and restrict Alaska's government from discriminating among similarly situated user groups' access to those resources.[109] Article VIII requires a "more stringent review" of statutes "than does the equal protection

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[104] Williams Alaska Petroleum, Inc. v. State, 529 P.3d 1160, 1187 (Alaska 2023); see also Kanuk, 335 P.3d at 1100 n.61 (common law trust principles continue to inform and define the State's duties under the public trust doctrine).

[105] Alaska Const. art. VIII, §§ 3, 4 (emphasis added). As this Court noted in Kanuk, the legislature has also recognized the atmosphere, and the environment more broadly, as public trust resources. 335 P.3d at 1102 n.78 (citing AS § 46.03.010(b); AS § 46.03.010(a)).

[106] Owsichek, 763 P.2d at 496.

[107] Alaska Fish & Wildlife Conservation Fund v. State, 347 P.3d 97, 102 (Alaska 2015).

[108] Owsichek, 763 P.2d at 493.

[109] E.g., State, Dep't of Fish & Game v. Manning, 161 P.3d 1215, 1219-21 (Alaska 2007) (discussing "legal framework for interpreting the equal access clauses of Article VIII" as "they relate to statutes and regulations that limit access" to public trust resources); State v. Kenaitze Indian Tribe, 894 P.2d 632 (Alaska 1995) (statute discriminating amongst groups of subsistence hunters with respect to their access to wildlife based on area of residence violated equal access clauses); McDowell, 785 P.2d 1 (hunting statute discriminating amongst users based on area of residence violated equal access clauses).

clause in cases involving natural resources."[110] Policies that substantially limit a group's access to public trust resources relative to a similarly situated group are per se unconstitutional.[111] For instance, measures that limit access to subsistence resources based on rural or urban residency, or based on geographic proximity, are per se impermissible.[112] In addition, discrimination based on seniority regarding access to natural resources "runs counter" to article VIII's equal access values.[113]

Here, the statutory mandate of AS § 3.25.005(1) and (5) to advance and develop the Alaska LNG Project discriminates against youth and future generations because the significant levels of climate pollution that will result from the Project—one of the largest fossil fuel projects on the planet—will substantially limit Youth Plaintiffs' access to public trust resources relative to past and present generations of adults. Thus, under article VIII, sections 3, 15 and 17, AS § 3.25.005(1) and (5) is per se unconstitutional.

Youth and future generations of Alaskans are a protected group of public trust beneficiaries similarly situated and with equal status to past and present generations of

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[110] Owsichek, 763 P.2d at 498 n.17; see also Baker, "Judicial standards under the Equal Protection Clause are well developed and familiar." 369 U.S. at 226.

[111] Manning, 161 P.3d at 1220 (In "McDowell, we established that the subsistence statute's overt residency requirement was per se impermissible."), id. at 1221 n.36 (noting that discrimination against user groups that are not similarly situated is subject to rational basis review); Owsichek, 763 P.2d at 493 (Article VIII "was intended to guarantee broad public access to natural resources.").

[112] McDowell, 785 P.2d 1 (statute limiting subsistence hunting and fishing activities to rural residents was per se unconstitutional under equal access clauses); Kenaitze Tribe, 894 P.2d 632 (statute limiting subsistence hunting and fishing based on proximity to resources was per se unconstitutional under equal access clauses).

[113] Owsichek, 763 P.2d at 496.

adults with respect to their reliance on and need for access to Alaska's natural resources.[114] Their lives, health, safety, cultural traditions and identities, and economic livelihoods depend on such resources.[115] The Alaska LNG Project will lock in significantly elevated levels of climate pollution for years to come, thereby driving further species population declines, crashes, and extinctions and making it more difficult and dangerous for Youth Plaintiffs to access such resources.[116] As youth and children, Youth Plaintiffs will experience these harms and limitations to a greater degree than adults.[117]

At minimum, "legislation which burdens the equal access clauses" of article VIII is subject to "demanding scrutiny[.]"[118] Under this standard, "the purpose of the burden must be at least important" and the "means used to accomplish the purpose must be designed for the least possible infringement on article VIII's open access values."[119] Here, the statutory directive to advance and develop the Alaska LNG Project cannot survive

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[114] Cook Inlet Fisherman's Fund v. State, Dep't of Fish & Game, 357 P.3d 789, 803 (Alaska 2015) (Article VIII's "primary purpose is to balance maximum use of natural resources with their continued availability to future generations.") (emphasis in original); Owsichek, 763 P.2d at 492 n.10 (The right to equally access Alaska's natural resources is a "highly important interest running to each person within the state."); Brooks, 971 P.2d at 1032 ("Article VIII requires that natural resources be managed for the benefit of all people," including "future generations"); see also AS § 46.03.010(b) (recognizing State "responsibility as trustee of the environment for the present and future generations.").

[115] Hahn Aff. ¶¶ 34, 35.

[116] Huntington Aff. ¶¶ 1, 2, 40; Lazarus Aff. ¶¶ 19, 25, 26.

[117] Hahn Aff. ¶ 8.

[118] McDowell, 785 P.2d at 9-10.

[119] Id. at 10.

demanding scrutiny. Technologically and economically feasible means of raising revenue, supporting economic development, and providing energy are readily available that do not substantially limit access to and continuing availability of the public trust resources for youth and future generations, including Youth Plaintiffs.[120]

2. AS § 31.25.005(1) and (5) Violate Youth Plaintiffs' Rights to Sustained Yield of Public Trust Resources under Article VIII, Section 4

Count 2 of Youth Plaintiffs' Complaint alleges that AS § 31.25.005(1) and (5) violates Youth Plaintiffs' rights to sustained yield of public trust resources under article VIII, section 4.[121] The public trust doctrine, as constitutionalized under article VIII, restricts Alaska's government from acting in a manner that abdicates control of or results in substantial impairment of trust resources.[122] Defendants' duties to maintain the corpus of public trust resources in perpetuity for present and future generations, and Youth Plaintiffs' corresponding rights, are constitutionalized, in part, in the sustainable yield clause of Alaska's Constitution, article VIII, section 4. This provision provides that "fish, forests, wildlife, grasslands and all other replenishable resources belonging to the State shall be utilized, developed, and maintained on a sustained yield principle, subject to preferences among beneficial uses." Article VIII, section 4's "primary purpose is to

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[120] See generally Jacobson Aff.

[121] Compl. ¶¶ 218-23.

[122] CWC Fisheries, 755 P.2d at 1118 (quoting Illinois Cent. R.R. Co., 146 U.S. at 453) ("The control of the State for purposes of the trust can never be lost, except as to such [resources] as are used in promoting the interests of the public therein, or can be disposed of without any substantial impairment of the public interest in the [resources] remaining.").

balance maximum use of natural resources with their continued availability to future generations."[123] This means that, "all replenishable resources are to be administered, insofar as practicable, on the sustained yield principle."[124]

The Alaska LNG Project will significantly exacerbate Alaska's climate crisis, causing and contributing to population reductions, extinctions, and other devastating harms to Alaska's fish, wildlife and other replenishable resources.[125] The statutory mandate in AS § 31.25.005(1) and (5) to advance and develop the Project conflicts with the State's duty ensure the continuing availability and sustained yield of public trust resources for youth and future generations. Since, there are "practicable" alternatives to the Project to provide energy and economic development that do not conflict with the State's sustained management duties, AS § 31.25.005(1) and (5) are unconstitutional under article VIII, section 4.

3. AS § 31.25.005(1) and (5) Violate Youth Plaintiffs' Fundamental Constitutional Right to a Climate System that Sustains Human Life, Liberty, and Dignity

Count 3 of Youth Plaintiffs' Complaint alleges that AS § 31.25.005(1) and (5) violate Youth Plaintiffs' fundamental right to a climate system that sustains human life, liberty, and dignity under article VIII and/or article I, section 7 of Alaska's

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[123] Cook Inlet Fisherman's Fund, 357 P.3d at 803 (emphasis in original) (quoting West v. State, Bd. of Game, 248 P.3d 689, 696 (Alaska 2010) (quoting The Alaska Constitutional Convention, Proposed Constitution for the State of Alaska: A Report to the People of Alaska (1956)).

[124] Id. (emphasis in original).

[125] See generally Huntington Aff.; Lazarus Aff. ¶ 6.

Constitution.[126]

The public trust doctrine, as constitutionalized under article VIII, includes and protects the fundamental right to a climate system that sustains human life liberty and dignity.[127] Article VIII "is devoted entirely to defining the people's rights in the development, conservation, and use of our natural resources and environment" and "[a]llegations that climate change destroys natural resources or even limits their continuing availability for present and future generations clearly implicate the State's stewardship responsibilities under article VIII."[128]

Under article VIII, resources protected under the public trust doctrine explicitly include "fish, wildlife, and waters" as well as "forests, . . . grasslands, and all other replenishable resources."[129] The air is intertwined and inextricably linked with all of Alaska's other public trust resources and is therefore also held in trust for the benefit of present and future Alaskans under the public trust doctrine. In fact, the legislature has recognized the air, and the environment more broadly, as public trust resources, declaring that it is "the policy of the state . . . to manage the basic resources of water, land, and air

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[126] Compl. ¶¶ 224-30.

[127] Sagoonick I, 503 P.3d at 807-09 (Maassen & Carney, J.J., dissenting in part). Hawai'i's Supreme Court has likewise concluded that the state's constitution, which includes public trust protections, "subsumes a right to a life-sustaining climate system[.]" Matter of Hawai'i Elec. Light Co., Inc., 526 P.3d 329, 335-36 (Haw. 2023) (recognizing right under Hawai'i Constitution's right to a clean and healthful environment clause, article XI, section 9).

[128] Sagoonick I, 503 P.3d at 808-09 (Alaska 2022) (Maassen & Carney, JJ., dissenting in part).

[129] Alaska Const. art. VIII, §§ 3, 4 (emphasis added).

to the end that the state may fulfill its responsibility as trustee of the environment for the present and future generations."[130]

Given the protections provided under article VIII to all natural resources, article VIII must also protect the air and atmosphere and Youth Plaintiffs' right to a livable climate.

The fundamental right to a livable climate is also protected under the due process clause of Alaska's Constitution, article I, section 7, which this Court has recognized protects a "broad scope" of fundamental rights.[131] Alaska's Constitution is explicitly dedicated to the protection of all persons' natural and inherent rights and was established for the express purpose of securing and transmitting them to "succeeding generations[,]" i.e., youth and children.[132] In identifying and applying fundamental rights, "the evolving spirit of due process must be discerned and made effective as civilization advances."[133] The rights enshrined in Alaska's due process clause are "designed to serve the needs of humanity and society with the ability to accommodate to changes which inevitably occur with the progress of our civilization."[134]

In recognizing fundamental rights, the courts are "under a duty[] to develop additional constitutional rights and privileges" if such fundamental rights and privileges

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[130] AS § 46.03.010(b); Kanuk, 335 P.3d at 1102 n.78.

[131] Myers v. Alaska Psychiatric Inst., 138 P.3d 238, 248 (Alaska 2006).

[132] Alaska Const. pmbl.

[133] Baker v. City of Fairbanks, 471 P.2d 386, 403 (Alaska 1970).

[134] Whitton v. State, 479 P.2d 302, 310 (Alaska 1970).

are within the "intention and spirit" of the constitutional language and are "necessary for the kind of civilized life and ordered liberty which is the core of [Alaska's] constitutional heritage."[135] Factors for recognizing fundaments rights include "preservation of maximum individual choice, protection of minority sentiments, and appreciation for divergent lifestyles," as well as "notions of a government of limited powers" and control over one's own lifestyle.[136]

The right to a climate system that sustains human life, liberty and dignity is "the bare minimum when it comes to the inherent human rights to which the Alaska Constitution is dedicated."[137] A safe climate system at its core is necessary to protect Youth Plaintiffs' lives and liberties, including their personal security, health, and safety. It implicates at its very core preserving youth and future generations autonomy to continue living within their cultural traditions, being able to continue to exist in their communities, and control over their subsistence lifestyles. Without a climate system capable of sustaining human life, liberty, and dignity, Youth Plaintiffs cannot grow to adulthood in safety, live long healthy lives, provide for their basic human needs, safely raise families, learn and practice their religious and spiritual beliefs, learn and transmit their cultural traditions and practices, maintain their personal security and bodily integrity, or lead lives with sufficient access to clean air, water, shelter, and food, all of

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[135] Baker, 471 P.2d at 402.

[136] Breese v. Smith, 501 P.2d 159, 169 (Alaska 1972); Raven v. State, 537 P.2d 494, 504 (Alaska 1975).

[137] Sagoonick, 503 P.3d at 805 (Alaska 2022) (Maassen & Carney, JJ., dissenting in part) (citing Alaska Const. art I, § 1).

which implicate personal security, health and safety. There is ample and growing precedent from courts across the country and around the world recognizing that the harms from fossil fuel policies implicate fundamental rights.[138]

Because the Alaska LNG Project will cause significant climate disruption and ensuing harms to the youth, AS § 31.25.05(1) and (5) are subject to strict scrutiny under

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[138] E.g., Held v. Montana, 560 P.3d 1235 (Mont. 2024) (recognizing fundamental right to a stable climate system); Juliana v. United States, 217 F. Supp. 3d 1224, 1250 (D. Or. 2016) ("[W]here a complaint alleges governmental action is affirmatively and substantially damaging the climate system in a way that will cause human deaths, shorten human lifespans . . . and dramatically alter the planet's ecosystem, it states a claim for a due process violation."), rev'd on other grounds, 947 F.3d 1159 (9th Cir. 2020); Matter of Hawai'i Elec. Light Co., Inc., 526 P.3d at 337 (Wilson, J., concurring) ("the right to a life-sustaining climate system is also included in the due process right to 'life, liberty, [and] property'"); Mathur v. His Majesty the King in Right of Ontario, 2023 ONSC 2316, ¶¶ 106, 112, 119-20 (Ontario Super. Ct. Apr. 14, 2023) (claims challenging Ontario's climate policy implicated rights to life, liberty, and security of the person and were justiciable); Cecilia La Rose v. His Majesty the King, 2023 FCA 241, A-289-20, ¶ 117 (Can. Fed. Ct. App. 2023) (claims challenging Canada's climate policy stated claim for violation of fundamental rights to life, liberty, and security of the person); M.K. Ranjitsinh & Ors. v. Union of India & Ors., 2024 INSC 280 (Sup. Ct. India 2024) (climate change and air pollution implicate rights to life and health); Stichting Urgenda v. The State of the Netherlands, No. 19/00135, Judgment, ¶ 5.7.9 (Sup. Ct. Neth. Dec. 20, 2019) ("Climate change threatens human rights"); Leghari v. Fed'n of Pakistan, W.P. No. 25501/2015, Order, ¶ 6 (Lahore High Ct. of Lahore, Pak. Sep. 4, 2015) ("On a legal and constitutional plane [climate change] is clarion call for the protection of fundamental rights of the citizens"); KlimaSeniorinnen v. Switzerland, App. No. 53600/20, Judgment (Grand Chamber) (Apr. 9, 2024) (climate change implicates human rights); Duarte Agostinho v. Portugal and 32 Other Member States, App. No. 39371/20, Decision (Grand Chamber) (Apr. 9, 2024) (claims involving climate harms to lives, health, and safety of children should be addressed by domestic courts where full factual record can be developed); Inhabitants of La Oroya v. Peru, Inter-Am Ct. H.R. (ser. C) No. 511, Judgment, ¶ 143 (Nov. 27, 2023) ("States have a heightened duty to protect children against risks to their health produced by the emission of polluting gases that contribute to climate change.") (unofficial translation); see also The Environment and Human Rights, Advisory Opinion OC-23/17, Inter-Am Ct. H.R. (ser. A) No. 23, ¶ 54 (Nov. 15, 2017) ("[C]limate change has a wide range of implications for the effective enjoyment of human rights, including the rights to life [and] health").

which it is Defendants' burden to demonstrate that the Statutes are justified by a compelling government interest that "'no less restrictive means could advance' the compelling [state] interest."[139] Here Defendants cannot meet this burden because technologically and economically feasible means of providing energy and supporting economic development, are readily available that would not cause substantial climate disruption and harm to Youth Plaintiffs.[140]

III. This Court Should Restore the Status Quo Preceding the Execution of the Agreement

A preliminary injunction restores the status quo ante litem—the state prior to the controverted action.[141] In other words, the status quo is measured as the legally relevant relationship between the parties before the controversy (i.e., lawsuit) arose.[142] AGDC may argue the status quo constitutes the state of affairs at the time Youth Plaintiffs filed the instant motion; i.e., having just entered into the Agreements with Glenfarne. No so. "The conclusion to be drawn from all the cases is that after a defendant has been notified of the pendency of a suit seeking an injunction against him, even though a temporary injunction

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[139] Huffman v. State, 204 P.3d 339, 347 (Alaska 2009).

[140] See generally Jacobson Aff.

[141] Valley Hosp. Ass'n, Inc., 948 P.2d at 965-66 (affirming injunction of a new policy and restored the status quo existing before the policy at issue was enacted); City & Borough of Sitka v. Constr. & Gen. Laborers Local 942, 644 P.2d 227 (Alaska 1982).

[142] Arizona Dream Act Coal. v. Brewer, 757 F.3d 1053, 1061 (9th Cir. 2014); see also Bayer CropScience LP v. Chemtura Corp., No. 12 CVS 3067, 2012 WL 2878174, at *4 (N.C. Sup. Ct. July 13, 2012) (The status quo is "the last peaceable uncontested status that existed before the dispute arose" and an "injunction is generally framed so as to restrain the defendant from permitting his previous act to operate, or to restore conditions that existed before the wrong complained of was committed.").

be not granted, he acts at his peril and subject to the power of the court to restore the status, wholly irrespective of the merits as they may be ultimately decided."[143]

Here, Youth Plaintiffs seek to enjoin AGDC from acting on unconstitutional Agreements it entered with Glenfarne behind closed doors after Youth Plaintiffs brought suit seeking to enjoin AGDC from "taking any further actions to advance or develop any component of the Alaska LNG Project, including transferring, directly or indirectly, including through any AGDC subsidiary . . . any interest in, or permit, license, authorization, or approval for the construction, development, or operation of the Alaska LNG Project."[144] Youth Plaintiffs' requested preliminary injunction is therefore prohibitive, not mandatory, insofar as it seeks to suspend Agreements AGDC entered unlawfully pursuant unconstitutional Statutes.[145]

CONCLUSION

Youth Plaintiffs respectfully request that this Court preliminarily enjoin and suspend the Agreements between AGDC and Glenfarne and restore the status quo

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[143] Jones v. Sec. & Exch. Comm'n, 298 U.S. 1, 17-18 (1936).

[144] Compl. pp. 77-78.

[145] See, e.g., Doubleclick Inc. v. Paikin, 402 F. Supp. 2d 1251, 1255-56 (D. Colo. 2005) (in employment dispute regarding noncompetition clause, court upheld injunction preventing employee from continuing to work for employer she joined months earlier, notwithstanding her contractual relationship with new employer). Even if this Court construes Youth Plaintiffs motion as seeking a mandatory injunction, such relief is warranted where, as here, the defendant consummates the very transaction the plaintiffs sued to enjoin. Porter v. Lee, 328 U.S. 246, 251 (1946) ("It has long been established that where a defendant with notice in an injunction proceeding completes the acts sought to be enjoined the court may by mandatory injunction restore the status quo.").

existing before the Agreements were entered until a decision on the merits of the constitutionality of AS § 31.25.005(1) and (5). The balance of hardships weighs in favor of Youth Plaintiffs as their Youth Plaintiffs will suffer irreparable harm without a preliminary injunction to stop the transfer, which alienates public trust resources and enables private parties to bring the Alaska LNG Project to completion through construction and operation, causing profound constitutional injuries to Youth Plaintiffs. Additionally, Youth Plaintiffs have shown a probable success on the merits of this appeal and their constitutional claims.

DATED this 2nd day of April, 2025.

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